Where Should We Draw the Line?

Pro Se AI Use, Privilege, and the Laboratory of Justice[*]

[*] This was prepared with the assistance of generative artificial intelligence. The author used Anthropic's Claude (Opus 4.7 and 4.8) to assist with legal and factual research, to verify and format citations against their primary sources, to draft portions of the text, and to edit, revise, and organize the manuscript.

I. The Laboratory of Justice

On a single day, February 10, 2026, two federal courts confronted the same question and reached opposite conclusions. In *United States v. Heppner*, Judge Jed S. Rakoff of the Southern District of New York held from the bench that a criminal defendant's thirty-one documents generated through conversations with Anthropic's Claude were fully discoverable: no attorney-client privilege, no work-product protection. Judge Rakoff's written opinion followed a week later, on February 17, 2026.[1] The same day as the *Heppner* bench ruling, in *Warner v. Gilbarco, Inc.*, Magistrate Judge Anthony P. Patti of the Eastern District of Michigan held that a pro se plaintiff's ChatGPT-drafted litigation materials *were* protected work product, warning that ruling otherwise "would nullify work-product protection in nearly every modern drafting environment."[2]

Six weeks later, in *Morgan v. V2X, Inc.*, Magistrate Judge Maritza Dominguez Braswell of the District of Colorado adopted a third path: substantive AI-assisted drafting received work-product protection, but the identity of the AI tool used had to be disclosed, and confidential discovery materials could not be uploaded to consumer AI lacking contractual no-training terms.[3] Two more decisions followed in early June. In *Tate Group Automotive, LLC v. Legacy Automotive Capital, LLC*, the Business Court of Texas protected the ChatGPT work product of a non-lawyer commercial party.[4] In *Assini v. Hayward*, a New York state court quashed a subpoena aimed at a

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[1] *United States v. Heppner*, 820 F. Supp. 3d 292, 294 (S.D.N.Y. 2026) (Rakoff, J.).

[2] *Warner v. Gilbarco, Inc.*, 820 F. Supp. 3d 629, 636-37 (E.D. Mich. 2026) (Patti, M.J.).

[3] *Morgan v. V2X, Inc.*, No. 25-cv-01991-SKC-MDB, 2026 WL 864223 (D. Colo. Mar. 30, 2026) (Dominguez Braswell, M.J.).

[4] *Tate Grp. Auto., LLC v. Legacy Auto. Cap., LLC*, No. 25-BC11B-0020 (Tex. Bus. Ct. 11th Div. June 3, 2026)

pro se litigant's ChatGPT account.[5] Both distinguished *Heppner*. In the first six months of 2026, five courts produced five opinions on the same novel question, and they did not sit in static opposition. Each was written against the ones before it, quoting them, distinguishing them, and refining them. What began as a split has become a conversation, one flowing toward protecting the right of litigants to use the tools available to them to interact with the court system.

Bradley Heppner should have known better than to put his defense strategy into a consumer chatbot whose privacy policy permits the provider to disclose user data to third parties.[6] He is a securities fraud defendant who hired an international defense firm to attend to his matters. He had no need to consult with Claude. Sohyon Warner, the pro se plaintiff in *Warner v. Gilbarco*, and Archie Morgan, the pro se plaintiff in *Morgan v. V2X*, used the only tools available to them. The doctrinal rule that gets it right for Heppner cannot be applied to Warner and Morgan without consequence, because the statistics show that Warners and Morgans are now the rule of the federal civil docket, not the exception.

Empirical work by Anand V. Shah and Joshua Y. Levy, drawing on over 4.5 million federal civil cases, finds that the pro se share of federal civil filings rose from a long-run baseline of 11% to 16.8% in fiscal year 2025; AI-text detection in sampled complaints rose from essentially zero pre-2023 to roughly 18% in early 2026.[7] Self-represented litigants are not just experimenting with generative AI; they are increasingly the population that uses it. An 18% jump in AI use for drafting court documents is not an indication of slight reliance on AI, rather a strong adoption

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[5] *Assini v. Hayward*, 2026 N.Y. Slip Op. 26086, 2026 WL 1677232 (Sup. Ct. Nassau Cnty. June 4, 2026)

[6] *Heppner*, *supra* note 1, at 296-97.

[7] Anand V. Shah & Joshua Y. Levy, *Access to Justice in the Age of AI: Evidence from U.S. Federal Courts* (working paper, Mar. 20, 2026).

signal. It is being used as a tool to navigate the challenging procedures and prohibitive language to grant people passageway to access the courts. If discovery doctrine treats their AI conversations as fully exposed—while attorneys' AI prompts are protected as opinion work product—the result is a two-tiered system in which the people most in need of legal assistance are the most surveilled when they seek it. The trajectory of these five decisions points somewhere specific: through the laboratories of justice, the courts are moving toward a system that protects the citizen's right of access to the courts. That is why *Heppner*, though rightly decided, cannot be made the rule. Heppner had already secured work-product protection and the attorney-client privilege, and he stepped outside that sphere. The pro se litigants had no such sphere to leave: for them the AI conversation is the mode of access itself, and it is their work product, so it must be protected. The task ahead is to keep *Heppner* from hardening into a rule that makes every litigant-drafted document discoverable, and to look instead to the four decisions that protect the self-represented.

II. Background: Doctrine, Tools, and Reality

Attorney-client privilege requires communication, made in confidence, between a client and an attorney, for the purpose of obtaining or providing legal advice. The privilege belongs to the client; voluntary disclosure to a third party waives it. Critically, it attaches only to communication with a *licensed attorney*. An AI chatbot, regardless of how sophisticated, is not a licensed attorney. That much is uncontroversial.

The work-product doctrine is broader. The Supreme Court established it in *Hickman v. Taylor*,[8] and Congress codified it at Federal Rule of Civil Procedure 26(b)(3): materials "prepared in

[8] *Hickman v. Taylor*, 329 U.S. 495 (1947).

anticipation of litigation or for trial **by or for another party** or its representative" are protected from discovery, with two tiers—fact work product (discoverable on substantial-need showing) and opinion work product (near-absolute protection for mental impressions).[9] The textual hook is "by or for another party," not "by or for an attorney." Pro se litigants are parties. This interpretation is the textual tipping point for the overall AI privilege debate. Those in favor of protecting work drafted via GPTs read "by or for another party" as the rule's plain language. Those against argue that *Hickman's* attorney-centric facts and the structure of the broader privilege apparatus carry the day. Both are plausible readings, with the latter continuing the archaic protectionism that limits the ability of pro se litigants to effectively interact with our legal system. These tools will only become more embedded in our courts.

Two features of that doctrine matter for what follows. First, the work-product doctrine and the attorney-client privilege do not merely protect isolated documents; together they create a sphere, a zone of privacy in which a party can develop legal theories and strategy with an eye toward litigation. For the represented client that sphere is doubly reinforced: the privilege shields their communications with counsel, and the work-product doctrine shields the materials their lawyers prepare. Second, the sphere does not depend on a lawyer to exist at all. Because Rule 26(b)(3) protects materials prepared "by or for another party," a litigant who has no lawyer still generates protectable work product when they prepare their own case. The represented litigant occupies a sphere already built for them. The pro se litigant must build their own, and increasingly the litigant builds it with AI.

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[9] Fed. R. Civ. P. 26(b)(3) ("Ordinarily, a party may not discover documents and tangible things that are prepared in anticipation of litigation or for trial by or for another party or its representative ….").

The release of OpenAI's ChatGPT in late 2022 began a transformation that the American Bar Association's December 2025 Year 2 Report captured this way: "AI is no longer an abstract concept. AI has become key to reshaping the way we practice, serve our clients, and safeguard the rule of law."[10] Purpose-built legal tools (Casetext CoCounsel, Harvey, Lexis+ AI, Westlaw's AI-Assisted Research) coexist with general-purpose platforms (ChatGPT, Claude, Gemini), and millions of people—lawyers, litigants, and members of the public—now use them.

Two facts bear directly on the access-to-justice question. First, the Shah and Levy March 2026 working paper documents a rapidly increasing number of federal civil pro se filings. More filings, more people accessing the court systems. Second, the much feared and widely covered AI hallucinations that have plagued early adopters are not solely a feature of self-represented litigation. In April 2026, during the Chapter 15 proceeding *In re Prince Global Holdings, Ltd.*, Sullivan & Cromwell partner Andrew G. Dietderich self-reported "roughly 40 corrections" worth of AI-generated errors—wrong pin cites, wrong volume numbers, parenthetical quotes "that just… aren't in the cases"—in an emergency motion before Chief Bankruptcy Judge Martin Glenn.[11] The first major Big Law hallucination disclosure cuts directly against the narrative that AI reliability is a class-of-litigant problem. It is a tool problem, and it touches every rung of the practice ladder.

III. Why *Heppner* Was Right (For Heppner)

The doctrinal posture in *Heppner* is straightforward, and the result is defensible on its own facts. After receiving a grand jury subpoena and retaining counsel—a team of lawyers operating with

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[10] ABA Task Force on Law and Artificial Intelligence, *Addressing the Legal Challenges of AI: Year 2 Report on the Impact of AI on the Practice of Law* 1 (Dec. 15, 2025).

[11] *In re Prince Global Holdings, Ltd.*, No. 26-10769, 2026 WL 1096899 (Bankr. S.D.N.Y. Apr. 18, 2026) (Glenn, C.J.).

the resources typical of high-stakes federal white-collar defense—Heppner used Claude independently, without his attorneys' knowledge or direction. He fed Claude information learned from his lawyers. He generated approximately thirty-one documents memorializing potential defense strategies. The FBI seized them in a search of his home.[12]

The underlying case gives the resource asymmetry its weight. The indictment, returned by a grand jury on October 28, 2025, charged Heppner with securities fraud, wire fraud, conspiracy, making false statements to auditors, and falsifying corporate records. It alleged that, as an executive of the publicly traded GWG Holdings, Inc., he had defrauded the company's investors of more than $150 million by making false representations about, and steering GWG into undisclosed self-serving transactions with, two privately held companies he controlled, Beneficient Company Group, L.P. and Highland Consolidated L.P. Arrested in Texas after the indictment was unsealed, Heppner pleaded not guilty and was released on bond, with trial set for the spring. To meet charges of that magnitude he retained a leading international defense firm. It was against this backdrop, after he had received a grand-jury subpoena and knew he was the target of the investigation, that Heppner generated his roughly thirty-one Claude reports outlining the defense he anticipated the government would force him to mount. His counsel conceded that they had not directed him to run those searches. The government agreed to segregate the documents under a privilege-protocol stipulation, and the dispute proceeded from there. Heppner was convicted at trial on all counts on May 7, 2026, and is scheduled to be sentenced in October 2026.[13]

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[12] *Heppner*, *supra* note 1, at 294-95.

[13] See *Heppner*, *supra* note 1 (indictment and underlying facts); Press Release, U.S. Att'y's Office, S.D.N.Y., Public Company CEO and Chairman Convicted of Fraud (May 7, 2026).

Judge Rakoff ratified this seizure using a mechanical analysis: Claude is not an attorney, "that alone disposes of Heppner's claim of privilege." [14]All recognized evidentiary privileges presuppose a relationship with a licensed professional bound by confidentiality duties. An AI chatbot—particularly a consumer-grade chatbot whose privacy policy permits the provider to collect and disclose user inputs—cannot form that relationship. The court's work-product analysis follows the same logic in a slightly different key: although the materials were prepared in anticipation of litigation, Heppner acted without counsel's direction. The materials reflect his own thinking, not the mental impressions and strategic judgments of his retained attorneys.

The court left a narrow opening for *Kovel*-type arrangements: had counsel directed the AI use, "Claude might arguably be said to have functioned in a manner akin to a highly trained professional who may act as a lawyer's agent within the protection of the attorney-client privilege."[15] On the facts of *Heppner*, that opening did not apply.

The distinction that determines whether *Heppner* was rightly decided is one of pre-existing protection. A represented client works inside a private, privileged sphere: the attorney-client relationship and the work-product doctrine already wrap his strategy sessions, his notes, and his lawyers' research in protection. Heppner had built that sphere. He had the counsel to occupy it and the *Kovel* doctrine to extend it to any expert, AI included, that his lawyers chose to direct. Denying privilege to the logs he generated after voluntarily stepping outside that sphere takes nothing from him that he had not already secured and chosen to forgo. That is what makes

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[14] *Heppner*, *supra* note 1, at 296.

[15] *Heppner*, *supra* note 1, at 297. The court cites United States v. Adlman, 68 F.3d 1495, 1498-99 (2d Cir. 1995), and United States v. Kovel, 296 F.2d 918 (2d Cir. 1961).

Heppner defensible, and it is also what makes it inapplicable to a litigant who never had the sphere to begin with.

Take the case as a problem in the vocational ethics of high-stakes defense. Heppner had counsel. He had resources. He had the *Kovel* doctrine itself available to him. Had he wanted privilege over his AI research, he could have asked his lawyers to direct it under a confidentiality engagement with an enterprise AI provider. He did none of that. Instead, he typed his defense theories into a consumer chatbot. *Heppner* is the right outcome for a very specific kind of case. A defendant of his sophistication and resources who chooses to bypass *Kovel* and use a consumer platform anyway has no doctrinal claim to privilege. The Harvard Law Review's case comment, while critical of Judge Rakoff's reasoning as "veer[ing] toward categorically excluding a client's use of generative AI from attorney-client privilege," does not contest this narrower proposition.[16] The problem is not the result in *Heppner*, it's the rule that radiates out of *Heppner* when the next defendant before a court is not Bradley Heppner.

IV. Why *Heppner* Is Wrong (For Pro Se Litigants)

Sohyon Warner is a pro se plaintiff in an employment dispute. She used ChatGPT to draft litigation materials in an active case. The defendants moved to compel production of the AI conversations. Magistrate Judge Patti denied the motion, and the reasoning is functional rather than relational. "ChatGPT (and other generative AI programs) are tools, *not persons*, even if they may have administrators somewhere in the background."[17] If a litigant's handwritten notes are protected work product, and a litigant's typed memoranda are protected work product, then a

[16] Cindy X. Guo, Case Comment, *United States v. Heppner*, Harv. L. Rev. Blog (Mar. 23, 2026).

[17] *Warner*, *supra* note 2, at 636-37.

litigant's AI-assisted drafts prepared in anticipation of litigation should receive the same treatment. To hold otherwise, the court endorsed the plaintiff's argument, "would nullify work-product protection in nearly every modern drafting environment, a result no court has endorsed."[18]

Warner takes Rule 26(b)(3)'s "by or for another party" text seriously. Pro se litigants are parties. AI-assisted drafting in anticipation of litigation is preparation by them. The court's "tools, not persons" framing reframes the AI privilege question from "who is the AI?" to "what is the AI?" The *Heppner* court treats Claude as a third-party recipient whose terms of service destroy confidentiality. The *Warner* court's characterization of ChatGPT as a word processor tracks the architecture of the tool. A large language model is a mathematical function: the litigant supplies a prompt, and the model produces output by predicting, token by token, the most probable continuation against patterns learned from training data.[19] The model holds no theory of the dispute, no persistent representation of the litigant's case between sessions, and no interest in the outcome. What Warner entered was her own prose, strategic choices, and iterative reasoning: her framing of the legal question, selection of facts to emphasize, and follow-ups when the output missed the point.

In *Morgan v. V2X*, Magistrate Judge Dominguez Braswell addressed a pro se Title VII plaintiff's AI-assisted drafting and adopted a more pragmatic posture, making three holdings that each addressed a different concern raised by the *Heppner* and *Warner* binary. First, substance is protected: AI-assisted drafting that reflects litigation strategy receives work-product protection.

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[18] *Warner*, *supra* note 2, at 637 (court endorsing plaintiff's argument).

[19] Ashish Vaswani et al., *Attention Is All You Need*, 30 Adv. Neural Info. Processing Sys. (2017).

Second, tool identity is not: the court ordered the plaintiff to disclose which AI tools were used, because tool selection does not reflect mental impressions but is a procedural fact. Third, protective orders police platform quality: the court barred uploading confidential discovery materials into consumer AI lacking contractual no-training terms.[20]

The *Morgan* approach whittles this issue from one large, unanswerable question to arguable issues that can be resolved. The substantive work product or no work product question is doctrinal. The court answers it through Rule 26(b)(3)'s text. The tool identity question is administrative; courts can know what tools are in play without intruding on strategy. The platform quality question is contractual. Protective orders can require enterprise-grade tools when discovery materials are sensitive, without categorically excluding consumer tools from work product protections otherwise. Sheppard Mullin's analysis recognized *Morgan* as the third leg of the trilogy.[21] Sidley's analysis observed that *Morgan*'s real contribution is to move the doctrinal frontier past privilege itself into how protective orders are tailored to AI use.[22]

The two most recent decisions sharpen the contrast between *Heppner* and the pro se cases, and both protect the litigant's AI work product. In *Tate Group Automotive, LLC v. Legacy Automotive Capital, LLC*,[23] the Business Court of Texas extended work-product protection to the ChatGPT conversations of a non-lawyer party principal in an ordinary commercial dispute. Applying Texas Rule of Civil Procedure 192.5(a)(1), which protects "material prepared or

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[20] *Morgan*, *supra* note 3.

[21] Sheppard Mullin, *A Third Court Addresses AI Privilege and Protective Order Issues* (April 2026).

[22] Sidley Austin, *Generative AI in Discovery: Protective Orders as an Emerging Point of Dispute* (April 6, 2026; Data Matters Privacy Blog).

[23] *Tate*, *supra* note 4.

mental impressions developed in anticipation of litigation or for trial by or for a party," Judge Grant Dorfman held that the Texas rules "plainly appear on their face to extend that protection to Mr. Tate's ChatGPT conversations," and expressly rejected *Heppner* while adopting the *Warner* and *Morgan* waiver standard that work product is "typically waived by disclosure to an adversary, or in circumstances that substantially increase the likelihood that an adversary will obtain the materials." *Tate* is significant because the line it draws does not depend on the pro se posture: if a non-lawyer principal at a represented company receives protection for his ChatGPT conversations, that protection rests on the substance of what was prepared, not on the litigant's lack of counsel. Following *Morgan*, the court still required the plaintiff to identify, by Bates number, which discovery materials had been shared with the tool.

A day later, in *Assini v. Hayward*,[24] a New York state court confronted the question in a new posture: instead of moving to compel the pro se defendant, the plaintiffs subpoenaed OpenAI directly for his ChatGPT prompts, inputs, and outputs relating to the case. Justice Rhonda E. Fischer quashed the subpoena, finding the reasoning of *Morgan* "persuasive" and quoting its holding that "given how AI tools function, it is entirely reasonable for a person to expect some privacy and confidentiality when interacting with these tools, even though they understand a third party is behind the tool collecting and storing their information." *Assini* answers the confidentiality rationale on which *Heppner* denied protection, and it does so for a self-represented litigant. It is not, however, unqualified: the court cautioned that the defendant's "use of AI frustrates the litigation" and "cannot go unfettered," and referred him to New York's new

[24] *Assini*, *supra* note 5.

Part 161 court rule,[25] which permits AI use in court filings without mandating disclosure but requires the filer to verify that no cited authority is fabricated.

These four decisions share a premise that *Heppner* does not disturb: the litigant before each court had no pre-existing sphere of protection to abandon. There is no attorney-client relationship for their AI use to circumvent, and no body of lawyer-prepared work product that their chatbot conversation duplicates or exposes. When Sohyon Warner or Archie Morgan opens ChatGPT, they are not bypassing the protection a lawyer would have given them. They are creating, for the first time and by the only means available to them, the strategy and the filings that a represented party's lawyer would create inside the firm's walls. To treat that act as a waiver is to punish them for the absence of counsel, which is the very condition the "by or for another party" language of Rule 26(b)(3) was amended to reach.

This is not a marginal phenomenon. The way the fastest-growing segment of the federal civil docket now interacts with the court system is, more and more, the generative AI conversation. Shah and Levy also find that the docket activity generated by pro se cases in their first 180 days has risen 158% above pre-AI levels, the same population now measured by the burden it places on the courts.[26] As these tools mature and gain acceptance, a growing share of a self-represented litigant's case materials originates in an AI conversation. A rule that exposes those conversations to discovery does not police a fringe practice; it reaches the primary workspace of millions of people who have no other, and it lays that workspace open to the represented adversaries best equipped to exploit it.

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[25] N.Y. Comp. Codes R. & Regs. tit. 22, § 161 (eff. June 1, 2026).

[26] Shah & Levy, *supra* note 7.

V. The Access to Justice Stakes

The case for *Warner* and *Morgan* is anchored in Anoo D. Vyas's argument that self-represented litigants seeking to understand their legal rights through AI may not realize their communications can be used against them.[27] Vyas would secure that protection by amending the Federal Rules of Civil Procedure and adopting a new discovery-management protocol; this Note takes the narrower view that the existing text of Rule 26(b)(3) already reaches the self-represented litigant, and that the five decisions of 2026, including *Tate* and *Assini*, show the courts converging on that reading without any rules amendment. Drew Simshaw, in the Yale Law Journal Forum, argues that interoperable legal AI can maximize access to justice only if the public trusts the tools. That trust collapses if users learn that AI conversations are routinely turned over during discovery.[28] Judge Stephanos Bibas, in the same Forum issue, suggests that the legal profession's monopoly may itself be a structural barrier to accessing the courts in the AI era. [29]

The data showing the increase in pro se federal civil filings and AI-assisted complaints layers on top of this scholarly convergence. The National Center for State Courts captured the policy

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[27] Anoo D. Vyas, *Confidentiality of AI Conversations: Protecting Self-Represented Litigants Who Use ChatGPT for Legal Advice*, 26 Duke L. & Tech. Rev. 186 (2026); *see id.* at 208-12 (proposing amendments to the Federal Rules and a discovery-management protocol). For the broader emerging commentary, none of which addresses the full 2026 case law or the reconciliation advanced here, *see* Milan Markovic, *Equal Justice & Generative AI*, 87 Ohio St. L.J. 455 (2026) (urging training of "justice tech workers" and mandatory verification of authorities in proceedings involving unrepresented parties, without reaching privilege or work product); Hon. Herbert B. Dixon Jr., *When Is a Litigant's AI Research Discoverable?*, Judges' J., Spring 2026, at 37 (summarizing *Heppner* and *Warner* and urging revision of ABA Formal Op. 512); Matti Neustadt, *Evolving AI: U.S. v. Heppner and the Impact on Attorney-Client Privilege*, Or. St. B. Bull., May 2026, at 18 (practitioner guidance on advising clients and defending against AI-assisted pro se litigants); and Afton Pavletic, *Navigating Today's AI Landscape with an Ethical Polestar*, SciTech Law., Spring 2026, at 12 (surveying lawyers' professional-responsibility duties in AI use).

[28] Drew Simshaw, *Interoperable Legal AI for Access to Justice*, 134 Yale L.J. Forum 795 (2025); Drew Simshaw, *Access to AI Justice: Avoiding an Inequitable Two-Tiered System of Legal Services*, 24 Yale J.L. & Tech. 1 (2022).

[29] Stephanos Bibas, *Lawyers' Monopoly and the Promises of AI*, 134 Yale L.J. Forum 920 (2025).

stakes plainly in its August 2025 white paper: "Doing nothing is no choice at all and will perpetuate the access to justice crisis and cede the future of legal services to unregulated, and potentially harmful, market forces."[30] A categorical *Heppner* rule applied to pro se litigants is a vote for doing nothing in a way that disproportionately disadvantages the litigants who already have the least.

Hickman v. Taylor's concern was not privilege as private courtesy but adversarial preparation as a public good; protecting the mental impressions that let each party build its case without doing its opponent's work.[31] When the litigant has no attorney, that concern does not vanish; it concentrates. If the pro se litigant's AI conversation is the only place adversarial preparation occurs, exposing it to compelled discovery while shielding the represented party's attorney work product produces exactly the inequity *Hickman* was meant to prevent. The rationale from *Hickman* favors protection where the alternative is asymmetry pointed at the party least equipped to bear it.

The stakes are not only about the individual litigant whose materials are compelled. They are about whether the public can trust the one tool that has begun to close the representation gap.[32]A pro se litigant who must assume that every question they type to an AI can be subpoenaed by an opponent will either stop using the tool or use it badly, second-guessing the candor that makes it useful. Protecting the pro se litigant's work product is therefore not a private courtesy to one

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[30] National Center for State Courts, *Modernizing Unauthorized Practice of Law Regulations to Embrace AI-Driven Solutions and Improve Access to Justice* 30 (Aug. 2025).

[31] *Hickman*, *supra* note 8, at 510-11.

[32] Simshaw, *Interoperable Legal AI*, *supra* note 28.

party. It is a precondition for the tool doing the access-to-justice work that the courts and the academy increasingly expect of it.

VI. Where Do We Draw the Line? In the Laboratory of Justice

If we accept that the *Heppner* decision was right for represented litigants but wrong for pro se, the next question is unavoidable. Where does the line go? The line-drawing problem is hard for two reasons: every privilege doctrine sits in tension with the truth-seeking function of discovery, and the platform-quality concern cannot be ignored. Privileges are the exception, not the rule. The justification for an exception must be that a public interest sufficiently weighty outweighs the cost of withheld evidence. Consumer AI platforms operate under terms of service that permit data collection, use for training, and disclosure to third parties. A doctrine that treats all AI as equivalent ignores a substantial structural difference between contractually deployed models and unpaid consumer-level accounts.

Five lines drawn in six months, each with the others in view. We are watching the laboratories of justice at work. Strong advocacy and scholarly writing can help influence decisions made by seated judges, but ultimately, we are watching the mechanism play out in real time. The legal academy is doing its part. Am Law 200 firms have published dozens of client alerts on these decisions in a matter of months, with sharp internal disagreement about whether *Heppner* and *Warner* are reconcilable, whether *Warner* is "pro se exceptionalism" or a generally applicable rule, and whether *Morgan*, *Tate*, and *Assini* have now confined *Heppner* to its facts.[33] State

[33] *See, e.g.*, Cleary Gottlieb, *Courts Grapple with Privilege Implications of AI* (Feb./Mar. 2026); Morrison & Foerster, *Tool or Third Party? Courts Differ on AI's Role in Privilege and Work-Product Protections* (Mar. 19, 2026); Jones Walker, *Same Week, Different Frameworks: Why Heppner and Warner Both Got It Right on AI Privilege—and Why That's the Problem*; Paul Weiss, *Federal Courts Reach Different Outcomes on Whether AI-Generated Materials Warrant Work Product Protection* (Mar. 25, 2026); Pillsbury, *AI and Privilege: Lessons from U.S. v. Heppner and UK Position*; Proskauer Tax Talks, *Recent Federal Privilege Ruling Related to AI Tools Has Implications for Routine Tax Advisor Arrangements* (Feb. 2026).

legislatures, courts, and bar associations are running their own experiments: California's COPRAC proposed rules, Colorado's SB26-189 retreat from the high-risk framework, Utah's regulatory sandbox, and New York's Part 161 rule permitting AI use in court filings.[34] Even the European Union is recalibrating: the May 7, 2026 Digital Omnibus political agreement deferred high-risk Annex III obligations from August 2, 2026 to December 2, 2027, a signal that the regulatory destination is not yet settled.[35]

There is a cost to leaving the question unresolved across district lines for years. Practitioners want predictability and litigants need to know what protection their work product gets before they generate it. There is also a cost to resolving the issue too soon. A premature appellate consolidation around any one of these five decisions would foreclose the co-existing experiments before their benefits and drawbacks can be observed in practice, not just in theory.

VII. Possible Resolutions and the Continuation of the Experiment

This is a real chance to effect meaningful changes to our legal system. The laboratory can produce a result that both demystifies the legal process and lowers the barrier to seeking legal resolution. The line should not be drawn to penalize litigants for using the tools available to them. A pro se litigant who has no access to enterprise AI cannot be faulted for using consumer AI any more than a pro se litigant who cannot afford a typing service can be faulted for

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[34] California State Bar, Proposed RPC Amendments on AI (COPRAC approval Mar. 13, 2026; comment closed May 4, 2026); Colorado SB26-189 (passed May 9, 2026; effective Jan. 1, 2027 pending signature); Utah Office of Artificial Intelligence Policy, ElizaChat Regulatory Mitigation Agreement (Dec. 2024); ABA Standing Comm. on Ethics & Prof'l Responsibility, Formal Op. 512 (July 29, 2024). See also Krishnan Christopher Jayaraman, *The Use of Generative Artificial Intelligence in the Judicial System: A Brave New World*, 38 J. Am. Acad. Matrim. Law. 81 (2025) (describing the Tenth Judicial District of Kansas's local rule requiring education and self-disclosure of AI use).

[35] Council of the EU, Press Release (May 7, 2026), *Artificial Intelligence: Council and Parliament agree to simplify and streamline rules*. Note: agreement is provisional, pending formal endorsement and Official Journal publication.

handwriting their brief. The platform-quality concern is real, but it cannot reasonably be addressed by exposing the litigant's strategic thinking to their opponent. *Morgan*'s protective-order approach is one way to manage this concern. There may be others. But "no protection" cannot be the answer for the population whose only option is consumer AI.

The line should be drawn at the substance and form interface rather than at the user and non-user interface. AI conversations that reveal a litigant's mental impressions and litigation strategy raise the same Rule 26(b)(3) concerns as a handwritten strategy memo. AI conversations that merely retrieve generic factual information do not. The relevant question is whether the conversation contains protected substance, not whether the user is an attorney or a pro se party, and not whether the platform is consumer or enterprise. Consumer-platform use of strategic substance might trigger Morgan-style protective-order conditions; it should not trigger categorical denial of protection.

There is one exception to that substance-based default, and *Heppner* marks it. Where a litigant already occupies an established sphere of attorney-client and work-product protection and then generates materials outside it, in unsupervised consumer AI use that his own counsel never directed, those materials may fall outside the protection he otherwise enjoys. The exception is narrow by design. It turns not on the litigant's status but on his choice: it reaches only the counseled party who had the *Kovel* route available and declined it. It does not reach the pro se litigant, who has no sphere to step outside of and for whom the AI conversation is the sphere. Protecting that conversation costs the truth-seeking function little. The adversary remains free to discover the underlying facts, the documents, and the testimony. What it may not extract is the self-represented litigant's synthesis of those facts into a strategy, which is exactly what it could never extract from a represented opponent. The asymmetry that a generalized *Heppner* rule

would create, opinion work product for the party with a lawyer and open discovery for the party without one, is the inequity *Hickman* was meant to prevent.

Two objections remain, and neither defeats the line. The first is administrability: how is a court to know whether a litigant occupied a protected sphere? The answer is that courts already make this determination every day. Whether a party was represented, whether counsel directed the work, and whether an attorney-client relationship existed are ordinary predicates of privilege analysis, and they are as visible in the AI context as anywhere else. The second objection is platform quality: consumer AI terms of service permit data collection, training, and disclosure, and a litigant who uploads sensitive discovery materials into such a tool may compromise confidential information. That concern is real, but *Morgan* and *Tate* show how to meet it without stripping protection. A protective order can require enterprise-grade, no-training tools, or a locally run model for confidential materials, and can compel disclosure of which materials were fed into which tool, so the opponent can assess exposure. The platform-quality problem is a reason to condition AI use, not a reason to expose the litigant's strategy to their adversary.

Generative AI is not the first new technology to test the boundaries of the work-product doctrine. *Hickman v. Taylor* itself emerged from a contest over attorney interview notes; a documentary form that the 1947 Court could not have anticipated would later expand to cloud-based collaboration documents, encrypted messaging archives, and now AI conversation logs. Doctrine has always evolved to accommodate new technologies, from the telephone to email to electronic discovery. Generative AI is the next step in that evolution, and the doctrine should evolve with it. When the time for a unified decision comes, the line should not be drawn so that the population whose only access to justice runs through consumer AI tools is the population most exposed by

the doctrinal evolution. Doing nothing, in the NCSC's framing, is not a choice at all.[36] But doing the wrong thing too quickly might be worse.

[36] NCSC, *supra* note 30.

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